

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

## S U M M O N S

-----X  
LUIS HILARIO

Plaintiff(s),

-against-

THE CITY OF NEW YORK, POLICE  
OFFICER VERDEJO SHIELD 14642 (HBMAN IRT)  
Individually and in his Official Capacity; and,  
POLICE OFFICER EMERSON CHARLES SHIELD  
25595 Individually and in his Official Capacity; and,  
POLICE OFFICER SSA EDWARD DEGIACOMO Tax No.  
9222129 (HBMAN IRT) Individually and in his Official Capacity

Defendants.

Date Purchased:  
Index No.  
Plaintiff designates  
NEW YORK  
as the place of trial  
The basis of venue is place of  
Occurrence  
Plaintiff resides at  
2391 Davidson Ave (1-D)  
Bronx, New York

-----X  
**TO THE ABOVE NAMED DEFENDANTS:**

**YOU ARE HEREBY SUMMONED** and required to answer to the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance, on the Plaintiff's attorney within twenty (20) days after service of this summons, exclusive of the day of service (or within thirty (30) days after service is complete if service is made by any method other than personal delivery to you within the State of New York). In case of your failure to answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York  
January 12, 2017

  
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THE LAYTON LAW FIRM, PLLC  
PAUL THOMAS LAYTON  
Attorney for Plaintiffs  
30 Vesey Street (Suite 1801)  
New York, New York 10007  
Cellular: (646) 402-4811**Defendant's Address**

CORPORATION COUNSEL OF THE CITY OF NEW YORK  
100 Church Street  
New York, New York 10007

Police Officer VERDEJO, Shield 14642  
NYPD/PSA5  
221 East 123<sup>rd</sup> Street  
New York, NY 10035

Police Officer SSA Edward DEGIACOMO Tax No. 922212  
NYPD/PSA 5  
221 East 123<sup>rd</sup> Street  
New York, NY 10035

Police Officer EMERSON CHARLES, Shield 25595  
NYPD/PSA 5  
New York, NY 10035

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

Index#

-----X  
LUIS HILARIO,

Plaintiff,

**VERIFIED  
COMPLAINT**

-v-

THE CITY OF NEW YORK, POLICE OFFICER VERDEJO  
SHIELD 14642 (HBMAN IRT) Individually and in his Official  
Capacity; and, POLICE OFFICER EMERSON CHARLES  
SHIELD 25595 Individually and in his Official Capacity; and,  
POLICE OFFICER SSA EDWARD DEGIACOMO Tax No.  
9222129 (HBMAN IRT) Individually and in his Official Capacity,

Defendants.  
-----X

**PRELIMINARY STATEMENT**

1. This is an action brought to vindicate Plaintiff's rights under Federal law for violations of his civil rights secured under color of statute, ordinance, regulation, custom, and/or secured to the plaintiff by the Fourth Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, through 42 U.S.C. Section 1983 and Section 1985 and 1986.
2. The Plaintiff (hereinafter, either "Luis Hilario," or "Mr. Hilario"), was subjected to excessive force in violation of the 4<sup>th</sup> Amendment, by the individually named officers who arrested him; Mr. Hilario was maliciously prosecuted; evidence was fabricated against the plaintiff by the individually named officers; and, a conspiracy was engaged in by the individually named officers by a cover-up their unlawful conduct. The City of New York is liable for failing to properly train, for instructing officers that punches to the head are permissible during an arrest for which deadly force would be excessive force; in failing to

sufficiently discipline; in permitting the assignment of officers with a history of excessive force to remain in contact with the public; and in retaining officers with a history of misconduct including the individually named officers, thereby endangering persons, including Luis Hilario.

3. Mr. Hilario seeks declaratory relief pursuant to 28 U.S.C. Sec. 2201, compensatory and punitive damages for violation of plaintiff's civil rights pursuant to 42 U.S.C. Sections 1981, 1985 and 1986 and an award of costs, disbursements and attorney fees under 42 U.S.C. Sec. 1988.

### **PARTIES**

4. Luis Hilario was at all times relevant to this action, a resident of the County of New York in the State of New York.
5. Defendant, THE CITY OF NEW YORK, is a municipal entity created and authorized under the laws of the State of New York and was/is the employer of the defendant officers, and the actions of the defendant officers complained of herein were done as part of the custom, practice, usage, regulation and/or at the direction of the defendant City of New York.
6. The City of New York is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The Defendant assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by NYPD.
7. At all times relevant, defendant THE CITY OF NEW YORK employed the individual defendant New York City Police Officer ("NYPD") VERDEJO Shield #14642.

8. At all times relevant, defendant THE CITY OF NEW YORK employed the individual defendant NYPD Officer EMERSON CHARLES Shield #25595.
9. At all times relevant, defendant THE CITY OF NEW YORK employed the individual defendant NYPD Officer SSA EDWARD DEGIACOMO Tax No. 9222129.
10. At all times relevant, defendant NYPD Officer VERDEJO Shield #14642 was acting both in his individual and official capacities as an employee of defendant CITY OF NEW YORK.
11. At all times relevant, defendant NYPD Officer EMERSON CHARLES Shield #25595 was acting both in his individual and official capacities as an employee of defendant CITY OF NEW YORK.
12. At all times relevant, defendant NYPD Officer SSA EDWARD DEGIACOMO Tax No. 9222129 was acting both in his individual and official capacities as an employee of defendant CITY OF NEW YORK.
13. At all times herein, the individual defendant officers were acting under the color of their official capacity, and their acts were performed under the color of law.
14. At all times herein, the individual defendants were/are the servants, agents, and employees of their co-defendant the City of New York.
15. Notwithstanding the unconstitutional and unlawful conduct, the actions of the individual defendants were taken in the course of their duties and were incidental to their otherwise lawful functions as agents, servants and employees of the CITY OF NEW YORK.
16. At all relevant times, the defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

17. Defendant NYPD Officer VERDEJO Shield #14642 is sued in his individual and official capacity.
18. Defendant NYPD Officer EMERSON CHARLES Shield #25595 is sued in his individual and official capacity.
19. Defendant NYPD Officer SSA EDWARD DEGIACOMO Tax No. 9222129 is sued in his individual and official capacity.

### **FACTS**

20. On May 3, 2014, Mr. Hilario lived in at 560 West 126<sup>th</sup> Street (Apt. A2A) in the City and State of New York, County of New York.
21. Mr. Hilario left his apartment to take out his trash; after seeing his friend Ramon on the corner of Old Broadway and 126<sup>th</sup> Street, he walked to him; he had paper or Styrofoam cup half filled with wine in his hand.
22. Police Officer VERDEJO Shield #14642 and his partner Defendant Police Officer EMERSON CHARLES Shield #25595 approached Mr. Hilario and asked him for his identification; Mr. Hilario placed the half cup of wine on the ground and checked his sweat pants pockets with both hands while telling the police that he did not have his identification; after Mr. Hilario stood back up from putting the cup on the ground he was punched in the face by Police Officer VERDEJO, Shield 14642 causing Mr. Hilario to lose consciousness and fall to the ground; he was bleeding profusely from his face. Police Officer VERDEJO, Shield #14642 was not trained to avoid using head shot punches by the NYPD.
23. Police Officer VERDEJO Shield #14642 and his partner Defendant Police Officer EMERSON CHARLES Shield #25595 placed Mr. Hilario in handcuffs and transported to

Harlem Hospital and then to the precinct; thereafter he was transported in handcuffs to Manhattan Central Booking; when he appeared in the Criminal Court of the City of New York for arraignment he was charged with Resisting Arrest; False Personation; and, a Consumption of Alcohol in a Public Place, a violation.

24. Mr. Hilario had been dazed or lost consciousness at the scene but when he was at Harlem Hospital he was regained his awareness and saw that he was chained to his hospital bed. He was handcuffed and shackled by his arms and legs to the bed.
25. Mr. Hilario regained his awareness and both Officer VERDEJO, Shield #14642 and Police Officer CHARLES, Shield #25595 were present with him in the hospital.
26. Mr. Hilario was arraigned before the Criminal Court of the City of New York under New York County Docket #2014NY034720 on May 3, 2014.
27. Police Officer VERDEJO, Shield #14642 prepared arrest paperwork which was approved by Sergeant SSA EDWARD DEGIACOMO, Tax No. 922212 and/or Sergeant Natasha FRIDAY.
28. The arrest paperwork falsely accused Mr. Hilario of “flailing his arms and his legs” and of “false personation” in failing to provide a correct date of birth; furthermore, the arrest paperwork failed to indicate that the “open container of alcohol” was in a cup without any markings to identify it as being a controlled substance; without this information in the paperwork and information which was provided to the prosecution the basis for stopping (and demanding identification) of Mr. Hilario was not able to be determined to be unlawful by the prosecution; the addition of the other false charges created an appearance of guilt and as to the allegation of “flailing” covered up the unprovoked brutality and excessive force.

29. Defendant Police Officer CHARLES Shield 25595 acted in concert with Police Officer VERDEJO, Shield 14642 to justify the use of excessive force upon Mr. Hilario by agreeing to the false version of events recounted by Police Officer CHARLES Shield #25595, including a false allegation that Mr. Hilario pushed Officer CHARLES Shield #25595 while he was attempting to handcuff the plaintiff, These false allegations were presented to the prosecution before charges were filed against Mr. Hilario.
30. On or about May 4, 2014, all charges against the plaintiff, LUIS HILARIO were dismissed.
31. After falsely arresting LUIS HILARIO, the arresting officers, and their supervisors by approving the report, caused a criminal proceeding to be commenced against the plaintiff.
32. The criminal proceeding against LUIS HILARIO was terminated in his favor.
33. There was no probable cause to arrest or commence criminal proceedings against LUIS HILARIO.
34. The criminal proceedings against LUIS HILARIO were commenced with malice.
35. Defendant, CITY OF NEW YORK, failed to properly train its police officers in use of head shots during arrests that do not justify deadly force; failed to discipline; and, failed to terminate or remove from public contact police officers who it knew, or should have known, were not fit to be police officers; this is part of a long standing policy by the CITY OF NEW YORK which is partly due to its contract with the Policeman's Benevolent Association that the CITY permits to control such things as retention of employees who have been found to have violated suspects rights.
36. As a result of the foregoing the injuries suffered by plaintiff include serious injury, humiliation, pain, and loss of earnings, loss of freedom and loss to reputation.



37. Defendants knew or should have known that there was no lawful basis for seizing the person of the plaintiff and assaulting, battering and otherwise subjecting the plaintiff to excessive force during his arrest as secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments.

38. That the arrest was initiated and continued without probable cause to believe any crime had been committed by the plaintiff, LUIS HILARIO.

39. As a result of the afore-described actions, these defendants individually deprived the plaintiff, LUIS HILARIO, of the right to be free from unreasonable search and seizures secured by the Constitution and laws of the United States and the 4<sup>th</sup> and 14<sup>th</sup> Amendments.

40. As a result of the afore-described actions, the defendant by and through the individually named officers deprived plaintiff LUIS HILARIO, of his right to liberty without due process of law secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments to the United States Constitution.

41. The unlawful arrest and use of excessive force of the plaintiff violated his rights under the 4<sup>th</sup> and 14<sup>th</sup> Amendments to the United States Constitution.

42. Defendants' actions were undertaken under color of law and would not have existed but for said defendants using their official power.

43. Defendant, CITY OF NEW YORK, has sanctioned the policy and practices described in the above paragraphs through its deliberate indifference to the effect of said policy upon the constitutional rights of Plaintiff and others similarly situated.

44. The individual police officers who arrested plaintiff conspired with each other to engage in the unlawful conduct including the unlawful stop of plaintiff and the falsification of evidence and cover up of the use of excessive force; all in violation of the plaintiff LUIS HILARIO's rights under the 4<sup>th</sup>, 6<sup>th</sup>

and 14<sup>th</sup> Amendments to the Constitution of the United States.

46. The individual police officers who arrested plaintiff had actual knowledge of the conspiracy to deprive persons at the aforementioned premises of their rights under the Constitution and each neglected and failed to prevent the interference with plaintiff's civil rights.

47. The afore-described constitutional violations are all actionable under and pursuant to 42 U.S.C., sections 1983 and 1985.

48. The afore-described acts of the defendants was intentional, willful, and malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights.

**FIRST CAUSE OF ACTION**  
**UNDER 42 U.S.C. SECTION 1983**  
(Police Officer EMERSON CHARLES, Shield #14642  
and Police Officer VERDEJO, Shield #1462)  
(False Arrest, Malicious Prosecution, Excessive Use of Force,  
Failure to Intervene, Fabrication of Evidence and Due Process Violations)

49. By this reference, Plaintiff LUIS HILLARIO incorporates each and every allegation and averment set forth in paragraphs "1" through "48" of this Verified Complaint as though fully set forth herein.

50. The conduct of the individually named defendant officers as described herein, amounted to false arrest, excessive use of force, failure to intervene, fabrication of evidence and violation of due process rights.

51. Such conduct violated Plaintiff's rights under 42 U.S.C. Section 1983 and the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.

52. Consequently, Plaintiff has been damages and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

**SECOND CAUSE OF ACTION**  
**UNDER 42 U.S.C. SECTION 1983**  
Failure to Train and Municipal Policy

53. By reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs “1” through “52” of this Verified Complaint and more particularly at paragraphs “13” through “15,” “18” through “20,” “26,” “33” through “46.”

54. Defendant THE CITY OF NEW YORK, acting through the New York City Police Department, had actual and/or *de facto* policies, practices, customs and/or usages of failing to properly train, supervise or discipline its police officers concerning correct practices in conducting investigations, the use of force, obligation not to promote or condone perjury and/or assist in the prosecution of innocent persons and obligations to effect an arrest only when probable cause exists for such arrest.

55. Defendant THE CITY OF NEW YORK, acting through the aforesaid NYPD, had actual and/or *de facto* policies, practices, customs and/or usages of wrongfully arresting, assaulting and or maliciously prosecuting individuals who are members of racial/ethnic minority groups such as Plaintiff, who is Hispanic, on the pretext that they were involved in some crime or offense.

56. The existence of the aforesaid unconstitutional policies, practices, customs and/or usages may be inferred from repeated occurrences of similar wrongful conduct, as documented in the numerous civil rights actions filed against the City of New York in the state and federal courts.

57. The Defendant THE CITY OF NEW YORK maintained the above described policies, practices, customs and/or usages knowing fully well that the policies, practices, customs or usages lead to improper conduct by its police officers and employees. In failing to take any corrective actions, defendant THE CITY OF NEW YORK acted with deliberate indifference, and its failure was a direct and proximate cause of Plaintiff’s injuries as described herein.

58. By these actions, defendants have deprived the Plaintiff of rights secured by the Fourth, Fifth,

Sixth and Fourteenth Amendments to the United States Constitution, as secured through 42 U.S.C. Section 1983.

**THIRD CAUSE OF ACTION**

**42 U.S.C. Section 1985**

(Police Officer EMERSON CHARLES, Shield #14642  
Police Officer VERDEJO, Shield #1462  
SSA Sergeant EDWARD DEGIACOMO)

59. By this reference, Plaintiff LUIS HILLARIO incorporates each and every allegation and averment set forth in paragraphs “1” through “58” of this Verified Complaint as though fully set forth herein and more particularly at paragraphs “13;” “14;” “18;” “19;” and “20.”

60. In an effort to find fault to use against Plaintiff, defendant officers conspired among themselves and conspired with other individuals to deprive Plaintiff of his Constitutional rights secured by U.S.C. Section 1983 and by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution and took numerous overt steps in furtherance of such conspiracy as set forth above.

61. In light of the foregoing therefore, defendant officers engages in a conspiracy designed to deprive Plaintiff of his Constitutional and federal rights in violation of 42 U.S.C. Section 1985.

62. As a direct and proximate result of the misconduct and abuse of authority detailed above, the Plaintiff sustained the damages hereinabove stated.

**WHEREFORE**, the plaintiff demands judgment against the defendants and prays for relief as follows:

Judgment awarding damages in an amount to be determined by the trier of facts; punitive damages against the individually named defendants; and, attorney fees as provided under 42 U.S.C. Section 1988.

And for such other and further relief as this Court may deem just and proper and equitable.

Dated: New York, New York  
January 12, 2017

Yours, etc.,

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PAUL THOMAS LAYTON  
THE LAYTON LAW FIRM, PLLC  
*Attorney for the Plaintiff*

OFFICE & P.O. ADDRESS  
30 Vesey Street Suite –Suite 1801  
New York, New York 10007  
(646) 402-4811

**ATTORNEY VERIFICATION**

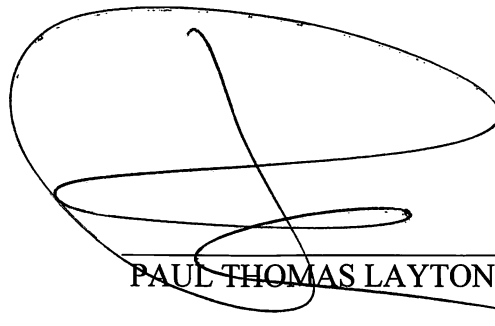
PAUL THOMAS LAYTON, an attorney at law, duly admitted to practice in the Courts of this State, affirms under the penalties of perjury that:

I am the attorney for the plaintiff in the within action and I the owner of The Layton Law Firm, PLLC I have read the foregoing Verified Complaint and know the contents thereof, and upon information and belief, I believe the matters alleged therein to be true.

The reason this verification is made by affirmant and not by the plaintiff is that the plaintiff herein is not currently in the County in which plaintiff's attorney maintains his offices.

The source of affirmant's information and the grounds for his belief are communications, papers, reports and investigations contained in plaintiff's attorney file.

Dated: New York, New York  
January 12, 2017



PAUL THOMAS LAYTON

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

x

LUIS HILARIO,

Plaintiff,

Index No

-against-

THE CITY OF NEW YORK, POLICE OFFICER  
VERDEJO SHIELD 14642 (HBMAN IRT) Individually  
and in his Official Capacity; and, POLICE OFFICER  
EMERSON CHARLES SHIELD 25595 Individually and in  
his Official Capacity; and, POLICE OFFICER SSA  
EDWARD DEGIACOMO Tax No. 9222129 (HBMAN  
IRT) Individually and in his Official Capacity,

Defendants.

SUMMONS and VERIFIED COMPLAINT

Pursuant to 22 NYCRR 130.1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: New York, New York  
January 12, 2017

THE LAYTON LAW FIRM, PLLC  
PAUL THOMAS LAYTON, ESQ.

Attorney for Plaintiff(s)  
Office and Post Office Address, Telephone  
30 Vesey Street (Suite 1801)  
NEW YORK, NY 10007  
646-402-4811

To:

Service of a copy of the within is  
hereby admitted.

Dated:.....20.....

PLEASE TAKE NOTICE:  
NOTICE OF ENTRY

That the within is a true copy of an Order duly entered in the office of the clerk of the within named court  
on

NOTICE OF SETTLEMENT

that an order Type of Order - of which the within is a true copy will be presented for settlement to the  
HON. Judge - , one of the judges of the within Court at